ARTICLE 3:
ZONING DISTRICTS

SECTION 3.1 GENERAL. 41
3.1.1 Applicability. 41
3.1.2 Compliance. 41
SECTION 3.2 DISTRICTS. 41
3.2.1 Defined. 41
3.2.2 Effect of Special District Designation. 41
3.2.3 Survival of PRD & CPRD Districts Established Prior to Effective Date. 41
SECTION 3.3 ESTABLISHMENT OF DISTRICTS. 41
3.3.1 Base Districts. 41
3.3.2 Base District Groupings. 42
3.3.3 Overlay Districts. 43
3.3.4 Other Districts. 45
SECTION 3.4 ESTABLISHMENT OF ADDITIONAL DISTRICTS. 46
SECTION 3.5 ELEMENTS & STANDARDS. 46
SECTION 3.6 ADDITIONAL REQUIREMENTS. 46

©2024 Town Planning & Urban Design Collaborative LLC

SECTION 3.1 GENERAL.

3.1.1 Applicability.

This **Article 3** applies to Districts to the extent provided herein.

3.1.2 Compliance.

Except for nonconformances allowed pursuant to Section 1.21 or as otherwise provided in these Regulations, with respect to each District, as applicable, all Development, Lots/Building Sites, Improvements, Structures, and all Uses, Construction, Alterations, Extensions and Enlargements thereof, and all parts thereof, and all Plans, applications, requests, and submissions for proposals required or made under these Regulations must include the elements required by and must comply with this **Article 3** and the applicable standards, requirements, and conditions of this Article and any license, permit, approval, certification, or authorization issued pursuant to these Regulations, any applicable approved Development Site Plan or other approval granted under these Regulations.

SECTION 3.2 DISTRICTS.

3.2.1 Defined.

These Regulations contain three (3) classifications of zoning districts: Community Districts, Special Districts and Civic Districts. Community Districts comprise the majority of land within the City and are intended to regulate the most broad grouping of Uses allowed within the City, such as residential, commercial and service. Special Districts are intended to regulate where very specific Uses can go, such as industrial Uses, Marine Uses or a Hospital. Civic Districts are intended to regulate City-owned properties that are generally dedicated to Civic activities and are designed to stand apart from their surroundings due to the specialized nature of its Civic purpose. Examples include Libraries, Places of Assembly, Courthouses, centers of government, Performing Arts Venues, and Museums.

3.2.2 Effect of Special District Designation.

If a Special District is designated for an area on the Zoning Map or any amendment thereof, such area is subject to the applicable Special District Development, and Lot or Building Site and Building standards of such District.

3.2.3 Survival of PRD & CPRD Districts Established Prior to Effective Date.

Parcels zoned to a Planned Residential Development (PRD) District or Commercial Planned Residential Development (CPRD) District prior to the Effective Date will continue to be regulated by the provisions applicable to them under the zoning regulations and approvals and permits pursuant to which they were established.

Notwithstanding anything to the contrary contained or implied in these Regulations, zoning or re-zoning of land to a PRD or CPRD District as described in any previous zoning regulations shall not be approved from or after the Effective Date.

SECTION 3.3 ESTABLISHMENT OF DISTRICTS.

3.3.1 Base Districts.

For the purposes of these Regulations, there are hereby established within the City, and the City is hereby divided into, the following Zoning Districts, which are described in **Tables 4.3.1-A – 4.3.1-O (District Standards)**, and the District standards for which are set forth for Buildings, and Lots or Building Sites in Section 4.3, and for Development Parcels in Sections 5.1 – 5.6 and **Tables 4.3.1-A – 4.3.1-O (District Standards):**

A. Community Districts.

1. Community District CD-1L (Sub-Urban – Large Lot)

©2024 Town Planning & Urban Design Collaborative LLC

2. Community District CD-1M (Sub-Urban – Medium Lot)

3. Community District CD-1S (Sub-Urban Single-Family)

4. Community District CD-2 (Sub-Urban Single- and Two-Family)

5. Community District CD-3 (General Urban)

6. Community District CD-3W (General Urban – Water)

7. Community District CD-3C (General Urban – Corridor)

8. Community District CD-4 (Urban Center)

9. Community District CD-4W (Urban Center – Water)

B. Special Districts.

1. Special District – SD-H (Hospital)

2. Special District – SD-IC (Island Conservation)

3. Special District – SD-LI (Light Industrial)

4. Special District – SD-HI (Heavy Industrial)

5. Special District – SD-MC (Marine Commercial)

C. Civic District.

3.3.2 Base District Groupings.

A. Residential.

Where the phrase "Residential District" or "Residentially-zoned" is used in these Regulations, the phrase shall be construed to include the following Districts:

1. Community District CD-1L (Sub-Urban – Large Lot)

2. Community District CD-1M (Sub-Urban – Medium Lot)

3. Community District CD-1S (Sub-Urban Single-Family)

4. Community District CD-2 (Sub-Urban Single- and Two-Family)

5. Any portion of Community District CD-3 (General Urban) used or available for Residential Use.

6. Any portion of Community District CD-3W (General Urban – Water) used or available for Residential Use.

7. Any portion of Community District CD-3C (General Urban – Corridor) used or available for Residential Use.

8. Any portion of Community District CD-4 (Urban Center) used or available for Residential Use.

9. Any portion of Community District CD-4W (Urban Center- Water) used or available for Residential Use.

10. Any portion of Special District SD-IC (Island Conservation) used or available for Residential Use.

11. Any portion of Special District SD-LI (Light Industrial) used or available for Residential Use.

12. Any portion of Special District SD-MC (Marine Commercial) used or available for Residential Use.

B. Commercial.

Where the phrase "Commercial District" or "Commercially-zoned" is used in these Regulations, the phrase shall be construed to include the following Districts:

1. Any portion of Community District CD-3 (General Urban) used or available for Commercial Use.

2. Any portion of Community District CD-3C (General Urban – Corridor) used or available for Commercial Use.

3. Any portion of Community District CD-3W (General Urban – Water) used or available for Commercial Use.

©2024 Town Planning & Urban Design Collaborative LLC

4. Any portion of Community District CD-4 (Urban Center) used or available for Commercial Use.

5. Any portion of Community District CD-4W (Urban Center- Water) used or available for Commercial Use.

6. Any portion of Special District SD-LI (Light Industrial) used or available for Commercial Use.

7. Any portion of Special District SD-MC (Marine Commercial) used or available for Commercial Use.

C. Industrial.

Where the phrase "Industrial District" or "Industrially-zoned" is used in these Regulations, the phrase shall be construed to include the following districts:

1. Any portion of Special District – SD-LI (Light Industrial) used or available for Industrial Use.

2. Special District - SD-HI (Heavy Industrial) used or available for Industrial Use.

3. Special District - SD-MC (Marine Commercial) used or available for Industrial Use.

D. Non-Residential.

Where the phrase "Nonresidential District" is used in these Regulations, the phrase shall be construed to include any of the Districts or portions thereof listed in Sections 3.3.2.B and 3.3.2.C.

3.3.3 Overlay Districts.

A. General.

In addition to the base Districts established pursuant to Section 3.3.1, property may be subject to regulation as one of the Overlay Districts established pursuant to Section 3.3.3.B and as designated on the Official Zoning Map.

Within an applicable Overlay District, the additional regulations, standards, and requirements of such Overlay District either supplement or replace those of the underlying base District, as provided for each Overlay District.

B. Establishment.

The following Overlay Districts are hereby established, each of which shall be subject to the standards and regulations referenced below:

1. Flood Hazard Zone Overlay.

The Flood Hazard Zone Overlay shall be the Flood Hazard Zone as shown on the Flood Insurance Rate Map (FIRM) dated October 16, 2013 (Panel 09001C0393G), July 8, 2013 (Panels 09001C0529G, 09001C0531G, 09001C0532G, 09001C0533G, 09001C0534G, 09001C0537G, 09001C0541G, 09001C0542G) and June 18, 2010 (Panels 09001C0389F, 09001C0391F, 09001C0392F, 09001C0394F, 09001C0526F, 09001C0527F), as referenced in Section 6.9, Flood Hazard Zone Overlay, which is hereby declared to be part thereof.

The intent of the Flood Hazard Zone Overlay is to control the Construction of Buildings in areas which are subject to Flooding in order to minimize the damages of such Flooding and to promote the health and safety of the City's residents. This regulation will enable the City to continue its eligibility for federal Flood insurance and, in doing so, to meet the minimum standards set forth by the Federal Emergency Management Agency.

No Building shall be Used and no Development or Construction shall occur or Building erected, Enlarged or Altered, except in conformity with the regulations herein prescribed for the designated Flood Hazard Area in which such Development, Construction, or Building is located and a Zoning Permit for Development in the Flood Hazard Zone Overlay District, as set forth in Section 6.9.4, has been issued in addition to other applicable permits and approvals.

©2024 Town Planning & Urban Design Collaborative LLC

2. Coastal Area Management Overlay.

The Coastal Area Management Overlay shall be the area within the Coastal Area Management boundary as designated on the Zoning Map.

It is declared that a need is present in the City for greater control over the Development of its shoreline in order to encourage Development which is compatible with the waterfront, minimize adverse environmental impact and encourage harmonious coastal development.

The intent of the Coastal Area Management Overlay is to implement the State Coastal Management Act, Chapter 444 of the Connecticut General Statutes, as amended, and the goals and policies therein.

No Building shall be used and no Development or Construction shall occur or Building erected, Enlarged or Altered, except in conformity with the regulations herein prescribed for the designated Coastal Area Management Overlay in which such Development, Construction, or Building is located and a Site Plan and a Zoning Permit for Development or Construction in the Coastal Area Management Overlay District, as set forth in Section 6.10.2, have been issued or approved, as applicable, in addition to other applicable permits and approvals.

3. Aquifer Protection Area Overlay.

The purpose of the Aquifer Protection Area Overlay Zone is to protect the quality of groundwater supplying public drinking water by regulating land Uses which may cause contamination of designated aquifers and aquifer recharge areas.

Principal and Accessory Buildings, Structures, and Uses, allowed in the underlying zone are permitted in the Aquifer Protection Area Overlay Zone provided that they comply with the requirements of the Aquifer Protection Area Regulations pursuant to Chapter 17 of the City Code.

4. Village District Overlays.

Village Districts are established to ensure each area's unique Character is maintained for future generations and are administered in accordance with Connecticut General Statutes Section 8-2j Village Districts. The following Village Districts are established as Overlay Zones.

a. **East Avenue Village District Overlay (O-EAVD).** It is the intent of this area to provide a mix of Office and lower-density Residential housing, as well as other compatible Uses which will meet existing and future needs within the City, and which will constitute a harmonious and appropriate part of the physical Development of the City. The provisions of this District are intended to preserve and enhance the Character of the East Avenue Village district by encouraging the preservation of Lots / Building Sites and Buildings of unique historical and architectural value and assuring that new Buildings, Structures and Uses will be in keeping with the established Character of the area, thereby strengthening the economy of the City and promoting the education, pleasure and welfare of its people.

b. **East Norwalk Village TOD Overlay (O-EVTZ).** It is the purpose of this District to ensure that any redevelopment in this District is consistent with the goals and recommendations outlined in the 2020 East Norwalk Village TOD Plan. The intent of the East Norwalk Village TOD Zone (EVTZ) is to:

(1) Encourage a mix of neighborhood retail and services and a supporting mix of residential Dwelling Units in appropriate village clusters.

(2) Require the creation of active pedestrian realm and Open Spaces to benefit the community.

(3) Increase connectivity for pedestrians and bicycles.

(4) Provide Residential Development within walking distance of the train station and the village area.

©2024 Town Planning & Urban Design Collaborative LLC

(5) Minimize land area for surface Parking and establish Parking requirements that support transit and provide appropriate levels of Residential Parking on-site.

(6) Require Development standards to achieve the following:

(a) enhancement of the physical and social connections, consistent with the permitted Uses, with a focus on amenities that support pedestrian and bicycle access;

(b) and Promotion of sustainable design through LID standards and similar measures, to conserve energy, manage rainwater and mitigate the effects of heat islands.

All Development within the O-EVTZ, must be consistent with the East Norwalk Village TOD Zone Design Guidelines.

c. **Rowayton Avenue Village District Overlay (O-RAVD).** The purpose of this District is to protect and enhance the unique Character of this neighborhood commercial area, which is located Adjacent to the waterfront. It is intended that this zone will also:

(1) Allow a mix of Uses which fulfill a neighborhood need,

(2) Provide public access to and along the waterfront,

(3) Provide public view corridors,

(4) Encourage Water-Dependent Uses, and

(5) Ensure Development is consistent with the goals and policies of the Coastal Management Act.

It is further intended that all Uses, Buildings, and Structures be compatible with one another and with the established Character of the Rowayton Avenue Village District.

d. **Silvermine Tavern Village District Overlay (O-STVD).** It is the purpose of this District to ensure that the unique Character of this District is maintained and to provide for the existing Uses, Buildings, and Structures to be maintained, including Inns, Restaurants, country stores and other compatible Uses which will meet existing and future needs within the district; including meetings, recreational activities, community gatherings/events, special events, cluster housing and related Accessory Uses which complement the village district Character of the site. The provisions of this District are intended to preserve and enhance the Character of the Silvermine Tavern Village District by encouraging the preservation of existing Buildings of unique historical and architectural value and assuring that any new Buildings, Structures, and Uses will be in keeping with the established Character of the area. It is recognized that approved buildings, structures and uses within an approved Silvermine Tavern District site plan may operate separately or collectively. The District is also intended to preserve public access to and along the waterfront including visual access, which shall be retained or provided as part of all new Development.

e. **Merritt Station Village District Overlay (O-MSVD).** It is the purpose of this District to ensure that the unique characteristics of this area are maintained for future generations in accordance with Connecticut General Statutes Section 8-2j, Village Districts. It is further intended to provide areas for supportive Development of the Merritt 7 office complex and to capitalize on the Merritt 7 Train Station, by providing more dense Development in proximity to mass transit. The provisions of this District are intended to ensure that Development is consistent with the North 7 Design Standards, thereby strengthening the economy of the City and promoting the education, pleasure and welfare of its people.

f. **Wall Street Village District Zoning Overlay (WS-Overlay).** The Wall Street Village District Zoning Overlay (WS-Overlay or Overlay) is hereby established as an overlay district within

©2024 Town Planning & Urban Design Collaborative LLC

the CD-4 Urban Center Community District and its boundaries are set forth on the Overlay zoning map. The purpose of the WS-Overlay is to:

(1) Recognize that the Wall Street area is a unique historic downtown neighborhood comprised of many small and historic properties with considerable limitations that predate modern zoning standards.

(2) Encourage walkable, transit-oriented development that attracts residents seeking a car-optional lifestyle.

(3) Encourage shared parking supported by the following findings:

(a) Most properties within the study area currently operate with zero or limited on-site parking and have done so for decades without documented adverse impact on district parking capacity.

(b) Most properties within the study area are under 10,000 square feet — too small to construct meaningful on-site parking without demolishing existing structures.

(c) Public Act No. 25-1 (HB 8002), signed into law November 2025, which prohibits municipalities from imposing parking minimums on residential developments of fewer than 16 dwelling units statewide and requires parking needs assessments for larger developments.

(4) Monitoring of development impacts to evaluate outcomes and determine whether to extend, modify, or terminate the Overlay based on data.

Exclusions from the WS-Overlay – No property within the WS-Overlay boundary shall be eligible to apply for any Planning and Zoning approval utilizing the WS-Overlay Regulations if the application would:

(1) Require the demolition of a Historic Structure, as that is defined in section 4.3.20 Article 9 of the Regulations; or

(2) Through the consolidation of Parcels, result in a Lot or Building Site Area greater than ½-acre or a Lot or Building Site Width greater than 100'.

Exemption from Off-Street Parking Minimums.

(1) Regardless of any other provisions within these Regulations, Residential Buildings or Mixed-Use Buildings containing Residential Dwelling Units or Dormitories within the WS-Overlay shall be exempt from the off-street parking requirements of Section 4.3.12, provided that:

(a) The Residential Buildings or Mixed-Use Building is listed on a local, state or national historic inventory and contains thirty-two (32) or fewer Dwelling Units.

(b) Residential Buildings or Mixed-Use Buildings, not listed on a local, state or national historic inventory containing greater than sixteen (16) Dwelling Units shall either:

(i) Provide one (1) parking space per Dwelling Unit greater than sixteen (16); or

(ii) Pay a fee-in-lieu-of parking for one (1) parking space for each Dwelling Unit greater than sixteen (16), as provided in Article 4.3.12.B.6.

(c) Residential Buildings or Mixed-Use Buildings listed on a local, state or national historic inventory containing more than thirty-two (32) Dwelling Units shall either:

©2024 Town Planning & Urban Design Collaborative LLC

(i) Provide one (1) parking space per Dwelling Unit greater than thirty-two (32); or

(ii) Pay a fee-in-lieu-of parking for one (1) parking space for each Dwelling Unit greater than thirty-two (32), as provided in Article 4.3.12.B.6.

(2) Nothing in this section shall prohibit a property owner from voluntarily providing off-street parking as otherwise required within the CD-4 zone.

Form-Based Residential Flexibility

(1) Within the WS-Overlay, the residential density standard of Table 4.3.1-H (currently 1 Dwelling Unit per 500 square feet of lot area) shall be amended to: Not Regulated (NR). However, for Residential Dwelling Units, no more than 2/3 of the units may be studio or 1 bedroom.

Public Realm

(1) Within the WS-Overlay, the Public Realm requirement of Table 4.3.1-H (10% of lot area) shall not apply to lots with Historic Structures and lots with less than 10 Dwelling Units. Small lots less than ¼ of an acre with more than 10 Dwelling Units may opt out of providing the Public Realm Requirements of Table 4.3.1-H (10% of lot area) if a payment in lieu is paid to the Downtown Public Spaces Fund of the City and that such fees shall be utilized solely for the acquisition, design and improvement of public parks and open spaces within that Census Block, in an amount determined by the following formula: The total square footage required for public realm space times $300 per square foot (value of public benefit) times 5% (FTA circular 9400.1A.

3.3.4 Other Districts.

A. General.

In addition to the Base Districts established pursuant to Section 3.3.1 and Overlays established pursuant to Section 3.3.3, property may be subject to Historic District Commission or Redevelopment Agency regulations and review.

B. Historic District.

Projects and activities within the Historic District, as designated by the Historic District Commission, are subject to additional review and require additional permits, including a Certificate of Appropriateness pursuant to City Code Chapter 56.

All activities that require a Certificate of Appropriateness are subject to review and recommendation by the Historic District Commission.

C. Redevelopment Agency Districts.

Projects and activities within the Redevelopment Agency Redevelopment Plan areas, as designated by the Redevelopment Agency, are subject to additional review and design guidelines

The following Redevelopment Plans are in effect:

1. West Avenue / Wall Street Redevelopment Plan.

All Development must comply with the Central Business Design Guidelines, which accompany the West Avenue/Wall Street Redevelopment Plan dated March 13, 2019, as may be hereafter amended. In addition, all Development is subject to sustainability review by the Redevelopment Agency.

2. South Norwalk TOD Redevelopment Plan.

All Development in the South Norwalk TOD

©2024 Town Planning & Urban Design Collaborative LLC

Redevelopment Plan area must comply with the Design Guidelines set forth in Sections 5.3 – 5.5 of the South Norwalk TOD Redevelopment Plan dated September 2016 as may be amended. In addition, all Development is subject to sustainability review by the Redevelopment Agency.

SECTION 3.4 ESTABLISHMENT OF ADDITIONAL DISTRICTS.

A. Planning and Zoning Commission Approval.

Districts in addition to those established and described in Section 3.3 and **Tables 4.3.1–A – 4.3.1–O (District Standards)** shall be subject to Planning and Zoning Commission establishment and assignment of standards and requirements by Zoning Regulations Amendment pursuant to Section 8.4.13.

B. Map Amendment.

Zoning or Rezoning of property to any District established pursuant to this Section shall be subject to approval of a Zoning Map Amendment in accordance with Section 8.4.14.

SECTION 3.5 ELEMENTS & STANDARDS.

Development, redevelopment, land, Structures, Buildings, Improvements, Lots, Building Sites, and Development Parcels within each District must include the elements indicated for such District throughout these Regulations and must comply with the applicable District general description and intent thereof and the standards applicable to such District set forth in **Tables 4.3.1–A – 4.3.1–O (District Standards)** and elsewhere in these Regulations.

SECTION 3.6 ADDITIONAL REQUIREMENTS.

In addition to all standards and requirements that are applicable to a specific District, all Development, redevelopment, land, Structures, Buildings, Improvements, Lots, and Building Sites within Districts must comply with all other applicable standards and requirements of these Regulations, including without limitation, the City–wide Standards set forth in **Article 6 (City–wide Standards)** and the Sign Standards set forth in **Article 7 (Sign Standards)**.

©2024 Town Planning & Urban Design Collaborative LLC